IN THE NATIONAL COMPANY LAW TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

TP(Co. Act)-11(PB)/2021
Connected with
CA(CAA)/85/2020

Application filed under Rule 11 & 16(d) of The National Company Law Tribunal Rules, 2016.

In the matter of

Scheme of Arrangement

of

BIKANO FOODS PRIVATE LIMITED
---Transferor Company/Applicant Company No. 1

And

BIKANERVALA FOODS PRIVATE LIMITED
---Transferee/Demerged/Applicant Company No. 2

And

BIKANERWALA PRIVATE LIMITED
---Resulting/Applicant Company No.3

Order delivered on: 28.07.2021

CORAM:
SHRI BHASKARA PANTULA MOHAN,
HON'BLE ACTING PRESIDENT

For the Applicant : Mr. Arun Saxena & Ms. Nalini, Advocates

— sd —

ORDER

Per: **BHASKARA PANTULA MOHAN, ACTING PRESIDENT**

It is an application filed by the Applicant Companies under Rule 16(d) r/w Rule 11 of the National Company Law Tribunal Rules, 2016, seeking a relief to transfer CA(CAA)/85/2020 from National Company Law Tribunal, New Delhi Bench-V to any other Bench of the National Company Law Tribunal, New Delhi Bench.

2. The Applicant Counsel has submitted that the CA(CAA)/85/2020 was listed on 07.01.2021 with National Company Law Tribunal, New Delhi Bench V and due to paucity of time could not be taken and was adjourned for 14.01.2021. On 14.01.2021 the matter was heard by the said bench and it was decided that matter relating to dispensation of the meeting of the Equity Shareholders is pending with the larger Bench and the matter is to be listed after the decision of the larger Bench on the point of dispensation of the meeting with the shareholder and matter was adjourned for 26.02.2021 and then again adjourned for 01.04.2021.

— sd —

3. The Applicant counsel has further stated that the matter was filed in August, 2020 and yet it's to be heard.

4. It is seen that the ground urged by the Learned Counsel for the Applicant in relation to the transfer of the CA(CAA)/85/2020 from Court – V of New Delhi Bench was that the matter relating to dispensation of the meeting of the Equity Shareholders is pending with the larger Bench and the matter was adjourned on the pretext that the CA(CAA)/85/2020 is to be listed after the decision of the larger Bench. However, it is seen that the said matter relating to dispensation of the meeting of the Equity Shareholders was finally decided by the then Hon'ble Acting President on 31.05.2021. Hence, nothing survives in the present Transfer Application. Let the CA(CAA)/85/2020 be listed before the regular Bench. Accordingly, this Application stands **closed**.

— sd —

(BHASKARA PANTULA MOHAN)
ACTING PRESIDENT

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